ADMINISTRATIVE REVIEW TRIBUNAL

BRISBANE REGISTRY ART No. 2023/3363

SIMON REID
Applicant

and

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

APPLICANT'S SUPPLEMENTARY SUBMISSIONS ON SEVERANCE

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addressing developments since 19 March 2026

A. Introduction

1. These supplementary submissions are filed with the leave of the Tribunal and are confined to events that have occurred since the Applicant's reply submissions of 19 March 2026 in Mr Simon Reid's application to sever ART No. 2023/3363 from the related proceedings of Ms Vida Reid (ART No. 2023/3361) and Forward Focused Group Pty Ltd (ART No. 2023/4494).

2. They do not re-traverse matters addressed in Mr Reid's Short Directions Submissions of 6 March 2026 or his Addendum Reply of 19 March 2026. The submissions are confined to two developments that occurred on 7 May 2026 and that bear on the factors identified at [12] and [13] of *Australian Securities and Investments Commission v Axis International Management Pty Ltd* [2009] FCA 250, as cited by the Respondent at paragraph 51 of its Submissions of 17 September 2025.

3. Mr Reid respectfully invites the Tribunal to take these developments into account when considering whether his proceeding should be severed from the proceedings of Ms Vida Reid and Forward Focused Group Pty Ltd.

B. Development 1 — the Respondent's 7 May 2026 disclosure

4. By letter dated 7 May 2026 (Karlie Dickinson, Australian Government Solicitor, the Respondent's ref. 23001627), the Respondent provided Mr Reid with copies of eight categories of documents that the Respondent acknowledged were "inadvertently omitted" from the original tender bundle filed with the Tribunal on 13 June 2024. The documents are listed at paragraph 15 of the Respondent's Short Supplementary Submissions of 19 March 2026 and were identified, in the 7 May 2026 letter, as comprising:

   (a) Notice and Statement of Reasons for the original banning order against Simon Reid;

   (b) Briefing note EC22-002103 (with attachments numbered 2a to 2zm);

   (c) Briefing note EC22-002429 (with attachments numbered 3a to 3d);

   (d) Briefing note EC22-002521 (with attachments numbered 4a to 4j); and

   (e) Statement of Cassandra Burke dated 16 February 2023 with attachments.

5. Each of those documents relates solely or principally to the case against Mr Reid. The Notice and Statement of Reasons of 21 December 2022 is the decision under review in ART No. 2023/3363. Briefing notes EC22-002103, EC22-002429 and EC22-002521 were prepared in respect of, and are identified by the Respondent as relating to, "the briefing notes relating to [Mr Reid] personally" (7 May 2026 letter, p. 2). The Cassandra Burke statement was relied on by the internal reviewer in IR(7) 22/23, the internal review decision relating to Mr Reid.

6. That the Respondent identified, segregated and produced eight categories of documents as a distinct set relating solely to the case against Mr Reid is a documentary acknowledgement that Mr Reid's case has a record materially separate from the records concerning Ms Vida Reid and Forward Focused Group Pty Ltd. The Respondent's conduct in compiling and supplementing the tender bundle has treated Mr Reid's documentary footprint as discrete.

7. That bears directly on the factor identified at *Axis International* at [12](a), namely whether "the issues concerning the party seeking the separate trial are distinct and discrete". The 7 May 2026 disclosure provides documentary evidence, generated by the Respondent itself, that the issues concerning Mr Reid are sufficiently distinct to require separate identification and production in a supplementary bundle.

C. Development 2 — the s 70 application of 7 May 2026

8. Concurrently with the 7 May 2026 disclosure, the Respondent filed with the Tribunal an application under s 70(2) of the Administrative Review Tribunal Act 2024 (Cth) seeking non-disclosure orders over two specific documents:

   (a) Attachment O to Briefing Note EC22-002103, identified by the Respondent as "a copy of legal advice provided to the Respondent" about the briefing note recommending the issuing of a notice of intention to make a banning order against Mr Reid; and

   (b) Attachment G to Briefing Note EC22-002521, identified by the Respondent as "a copy of legal advice provided to the Respondent" about the briefing note recommending the making of a banning order against Mr Reid.

9. Both documents relate solely to the case against Mr Reid. Neither concerns Ms Vida Reid or Forward Focused Group Pty Ltd. The Respondent has invited Mr Reid to make submissions to the Tribunal on the application by way of return correspondence (7 May 2026 letter, p. 2).

10. The s 70 application is, accordingly, an interlocutory matter that engages only Mr Reid's proceeding. It will require:

    (a) the filing of opposing submissions by Mr Reid;

    (b) the consideration by the Tribunal of the question whether legal professional privilege has been waived by the Respondent's reliance on the briefing notes as the documentary basis for the decision under review, applying *Mann v Carnell* (1999) 201 CLR 1; and

    (c) the determination by the Tribunal of whether to make orders under s 70(2) of the ART Act.

11. At paragraph 8 of its Short Supplementary Submissions of 19 March 2026, the Respondent submitted that severance was unnecessary because, after the withdrawal of Ms Vida Reid's stay application,

"there are no further interlocutory matters on foot which could result in additional delays to the hearing of Mr Simon Reid's proceeding, rendering severance unnecessary".

12. That submission has been overtaken by events. The Respondent's own conduct on 7 May 2026 has placed a fresh interlocutory matter on foot, and that matter concerns Mr Reid alone. Mr Reid's proceeding will be progressed through the s 70 application; Ms Vida Reid's and Forward Focused Group Pty Ltd's proceedings will not.

13. That, in turn, engages the second factor identified in *Axis International* at [12](b) — that a joint trial would involve the other applicants "in the expense of being present at the trial of questions with which they are not concerned". The s 70 application is a Mr Reid-specific question. If the proceedings remain joined, Ms Vida Reid and Forward Focused Group Pty Ltd will be required to be present (or to engage with the issues) during the s 70 dispute despite having no interest in either document the subject of the application.

D. Effect on the Respondent's case against severance

14. The Respondent's principal argument against severance, set out at paragraphs 55 and 58 of its 17 September 2025 submissions, rests on three propositions:

    (a) that joint trial serves the efficient use of Tribunal resources;

    (b) that joint trial avoids the need for witnesses to give testimony multiple times; and

    (c) that joint trial avoids the risk of inconsistent findings.

15. Mr Reid does not contest the abstract weight of those considerations. Each is supported by the authorities collected in *Axis International* at [13]. The submission Mr Reid makes is that, in the period since 19 March 2026, the documentary and procedural foundation of the Respondent's argument has changed in two material respects:

    (a) first, the Respondent has, by its own conduct, established that Mr Reid's documentary record is meaningfully distinct from those of Ms Vida Reid and Forward Focused Group Pty Ltd (paragraphs 4 to 7 above); and

    (b) second, the Respondent has, by its own conduct, introduced a new interlocutory matter concerning only Mr Reid that contradicts its 19 March 2026 submission to the contrary (paragraphs 8 to 13 above).

16. Those changes do not displace the witness-overlap consideration. Mr Reid accepts that several witnesses are common to all three proceedings. But the question for the Tribunal under *Axis International* is not whether any factor at [13] is engaged; it is whether, on balance, severance is "most conducive to a just resolution of the disputes between the parties, but having regard to the desirability of limiting, so far as practicable, the costs and delay of the litigation" (*Axis International* at [9], citing *Bishop v Bridgelands Securities* (1990) 25 FCR 311 at 314).

17. Two of the three pillars of the Respondent's case against severance — the absence of distinct Mr Reid-specific issues and the absence of further interlocutory matters — have been materially weakened by the Respondent's own conduct since 19 March 2026.

E. Conclusion and orders sought

18. These submissions are confined to the developments of 7 May 2026 and the way those developments engage the *Axis International* factors. They do not seek to re-open any submission previously made and do not address the merits of the substantive review.

19. Mr Reid respectfully submits that, taking the developments into account, the balance of the *Axis International* factors now more clearly favours severance of his proceeding from the proceedings of Ms Vida Reid and Forward Focused Group Pty Ltd.

20. Mr Reid asks the Tribunal to:

    (a) consider these supplementary submissions when determining the severance application; and

    (b) order that ART No. 2023/3363 be severed from ART Nos. 2023/3361 and 2023/4494, with directions to follow.

Dated:

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SIMON REID
Applicant in person
ART No. 2023/3363